

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
BARBARA DARSHAN) **Docket No: MH 04-0503**
License No. 068-0000533)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, through State Prosecuting Attorney, Edward G. Adrian, and Respondent Barbara Darshan, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Deceptive procurement of a license is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129a(a)(1).
3. Failure to comply with the provisions of state statutes or rules governing the practice of the profession is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129a(a)(3).

Facts

4. The Respondent (whose address is listed in the database of the Office of Professional Regulation as 56 ½ Merchants Row, Suite 203, Rutland, VT 05701) is licensed as a Clinical Mental Health Counselor under License Number 068-0000533.
5. Respondent was originally licensed on February 15, 2001 and Respondent's license has a current expiration date of January 31, 2005.
6. At all times relevant to these Charges, the Respondent was employed by Rutland Mental Health Service ("RMHS") as a Clinical Mental Health Counselor.
7. On or around February 8, 2001, following a denial of the Board of Respondent's 50 individual face to face hours, the Respondent allowed D.M.D, a Clinical Social Worker employed at RMHS, to sign and submit to the Board on Respondent's behalf the Report of Supervised Experience for the licensure of Respondent as a mental health counselor.

STATE OF VERMONT



Prosecuting Attorney
Office of
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Montpelier, VT 05602

8. On the Report, D.M.D. stated that she was the Respondent's supervisor, and that D.M.D. had been supervising the Respondent from September 14, 1999 through the date D.M.D. signed the Report, February 8, 2001.

9. On the Report, D.M.D. stated that D.M.D. supervised the Respondent for a total number of supervised practice hours of 2,618, accumulating at a rate of 38.5 hours per week.

10. On the Report, D.M.D. stated that D.M.D. supervised the Respondent for 50 individual face-to-face hours.

11. D.M.D. admitted to State Investigator Jackie Cholewa that D.M.D. had never been the Respondent's supervisor, rather D.M.D. worked as a peer with the Respondent.

Charges

12. The above acts, omissions and/or circumstances described above, constitute grounds for discipline because Respondent violated:

- i. 3 V.S.A. §129a(a)(1) (Deceptive procurement of a license); and
- ii. 3 V.S.A. §129a(a)(3) (Failure to comply with the provisions of state statutes or rules governing the practice of the profession).

Understandings

A. Respondent understands that the Allied Mental Health Practitioners Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.

B. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.

C. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

D. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.

E. Respondent voluntarily waives her right to charges and a contested hearing before the Allied Mental Health Practitioners Board.

STATE OF VERMONT



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F. Respondent does not admit to the charges above, but agrees that the Board may accept them as proven by the State in order to resolve the pending matter and that the Order set forth may be entered by the Board.

ORDER

Based upon the stipulation above, it is **ORDERED AND ADJUDGED** by the Board of Allied Mental Health Practitioners as follows:

G. Respondent, by her acts as set forth above, has engaged in unprofessional conduct pursuant to, and in violation of:

- i. 3 V.S.A. §129a(a)(1) (Deceptive procurement of a license); and
- ii. 3 V.S.A. §129a(a)(3) (Failure to comply with the provisions of state statutes or rules governing the practice of the profession).

H. Respondent Barbara Darshan's license will be **SUSPENDED** and **CONDITIONED** as outlined below:

1. Supervised Experience. Either prior to, or within sixty (60) days from the date of entry of this order the Respondent shall engage in supervision with a licensed mental health practitioner pursuant to 26 V.S.A. §3265(2). This supervised experience shall continue until Respondent has completed at least four (4) hours of face-to-face, individual supervision and one hundred and five (105) hours of supervised practice in clinical mental health counseling.
2. Upon completion the supervisor shall send a Report of Supervised Experience to the Board. Upon acceptance by the Board, and notification to the Respondent, the Respondent's license shall be **SUSPENDED FOR A PERIOD OF THIRTY (30) DAYS**, and the Respondent may not practice.
3. Upon completion of the suspension period the Respondent shall engage in supervision, for a minimum period of one (1) year. Supervision shall be with a licensed mental health practitioner approved by the Board. The Respondent shall submit the curriculum vitae of the potential supervisor, along with a letter from the supervisor indicating her/his willingness to provide clinical supervision; and disclosing any previous professional, community, or personal relationship the potential supervisor has had with the licensee prior to this request, and indicating that they have read, and understand, the Charges and Order.

(a) The supervisor's first role shall be to review the Respondent's current caseload. If the supervisor thinks that there are changes that should be made to either improve clinical treatment or avoid ethical violations, the Respondent shall take appropriate steps per the approval of the supervisor.

(b) Respondent's program of supervision shall involve not less than one hour of

STATE OF VERMONT



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face to face

supervision for every thirty hours of client contact. If, for any reason, the supervisor deems it necessary to end the supervisory relationship with Respondent, the supervisor shall immediately notify the Board of such termination of the supervisory relationship and the reason therefore. If such termination occurs, Respondent shall immediately undertake to establish a new supervisory relationship with a licensed professional acceptable to the Board or its designee and will not be required to suspend her practice if such arrangements are made and approved within a reasonable period of time, not to exceed two months. If the process exceeds two months, Respondent shall not engage in the further practice of mental health counseling until a new supervisor has been approved by the Board.

(c) Reports from Supervisor. Within one (1) month of the Board approval of Respondent's supervisor and quarterly thereafter for the period the conditions are in place, Respondent shall cause her supervisor to submit to the Board an evaluation of Respondent's performance and attendance during that quarter. This report shall be submitted in writing on the supervisor's letterhead.

(d) The Board or its designee shall have full access to information from any supervising professional related to the matters set out above. In addition, substantive detailed reports by the supervising professional shall be submitted quarterly to the Board. The report shall address the Respondent's compliance with the laws and rules of the profession, and include a brief summary of all supervision contacts.

4. Ethics Course. Respondent shall, at her own expense, complete one (1) three credit graduate level ethics course. The course must be pre-approved by the Board. Respondent must submit written documentation (certificate of completion, etc.) to verify same to the satisfaction of the Board or its designee. Respondent shall complete this course within twelve (12) months of the date of entry of this Order.

5. Violation of the Consent Order. If Respondent violates the terms of this Stipulation and Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional license status and take further disciplinary action. If a complaint or charges are filed against Respondent during the term of this Consent Order, the conditioned period shall be extended until the matter is final.

6. Out of State Practice/Residence. Before any out-of-state practice or residence can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board prior to Respondent leaving the State of Vermont. If Respondent fails to receive such approval before leaving the State, none of the time spent out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. The Board will approve out-of-state practice so long as the Respondent can still comply with the provisions of this Consent Order.

7. Completion of Conditional Period. After the conditional period, the Respondent may petition the Board to remove any and all conditions on her license. The

STATE OF VERMONT



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Respondent must present proof that she has fully complied with the terms of this Order.

I. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.

J. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

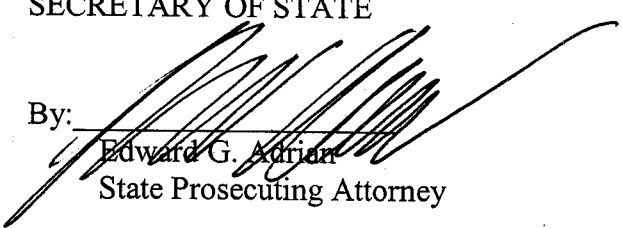
K. This Stipulation and Consent Order will remain part of the Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 2/3/04

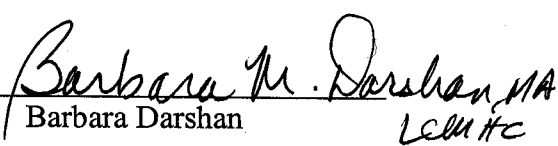
By:


Edward G. Adrian
State Prosecuting Attorney

BARBARA DARSHAN
RESPONDENT

Dated: 1/30/04

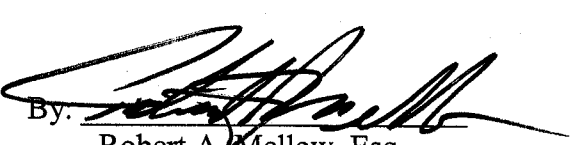
By:


Barbara M. Darshan, MA
Barbara Darshan LCMHC

ATTORNEY FOR RESPONDENT
APPROVED AS TO FORM:

Dated: 1/30/04

By:

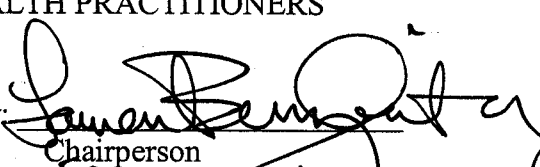

Robert A. Mellow, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 3/18/04

By:


Chairperson
subject to respondent's
approval

Date of Entry: 3/25/04

mh.darshan.stip

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